

Antiquities and Monuments Ordinance**(Cap. 53)****Contents**

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To provide for the preservation of objects of historical, archaeological and palaeontological interest and for matters ancillary thereto or connected therewith.

[1 January 1976] *L.N. 286 of 1975*
(*Format changes—E.R. 6 of 2019*)

Preliminary

1. Short title

This Ordinance may be cited as the Antiquities and Monuments Ordinance.

2. Interpretation

In this Ordinance, unless the context otherwise requires—

antiquity (古物) means—

- (a) a relic; and
- (b) a place, building, site or structure erected, formed or built by human agency before the year 1800 and the ruins or remains of any such place, building, site or structure, whether or not the same has been modified, added to or restored after the year 1799;

Authority (主管當局) means the Secretary for Development;
(*Replaced 38 of 1982 s. 2. Amended L.N. 67 of 1985; L.N. 242 of 1989; L.N. 372 of 1996; L.N. 362 of 1997; L.N. 192 of 1998; L.N. 206 of 1998; L.N. 130 of 2007*)

Board (委員會) means the Antiquities Advisory Board established by section 17;

designated person (指定人士) means—

- (a) the officer in charge of a police station;
- (b) a police officer of or above the rank of inspector; and
- (c) any person specified by the Authority by notice in the Gazette;

discovery (發現) means the finding in Hong Kong—

- (a) in, on or under land or sea;
- (b) in or on anything growing on land; or
- (c) attached to or within the fabric or foundations of a structure in, on or under land or sea,

of an antiquity or supposed antiquity the presence of which was previously unknown to the owner of such land or structure;

Government land (政府土地) means land other than private land;
(Amended 29 of 1998 s. 105)

Land Registry (土地註冊處) means the Land Registry established under the Land Registration Ordinance (Cap. 128); (Amended 8 of 1993 s. 2; 20 of 2002 s. 5)

licence (牌照) means a licence granted under section 13;

metal detector (金屬探測器) means any device designed or adapted for detecting or locating any metal or mineral in the ground; (Added 38 of 1982 s. 2)

monument (古蹟) means a place, building, site or structure which is declared to be a monument, historical building or archaeological or palaeontological site or structure under section 3; (Replaced 38 of 1982 s. 2)

movable object (可移動物體) means an object which does not form part of land;

owner (擁有人), in relation to land, means a person entitled to possession of the land under a Government lease or

agreement for lease, or other form of valid title from the Government; (*Amended 29 of 1998 s. 105*)

permit (許可證) means a permit granted under section 6;

private land (私人土地) means—

- (a) land held under lease, agreement for lease, tenancy agreement, licence, permit, deed or memorandum of appropriation, or other valid title from the Government; and (*Amended 29 of 1998 s. 105*)
- (b) land occupied by the Hong Kong Garrison, or for other purposes of the Central People's Government, under lease, licence, permit, deed or memorandum of appropriation, requisition or other permanent or temporary title; (*Amended 2 of 2012 s. 3*)

proposed monument (暫定古蹟) means a place, building, site or structure which is declared to be a proposed monument, proposed historical building, or proposed archaeological or palaeontological site or structure under section 2A; (*Added 38 of 1982 s. 2*)

relic (古代遺物) means—

- (a) a movable object made, shaped, painted, carved, inscribed or otherwise created, manufactured, produced or modified by human agency before the year 1800, whether or not it has been modified, added to or restored after the year 1799; and
- (b) fossil remains or impressions;

supposed antiquity (假定古物) means an object or site which may reasonably be supposed to be or to contain an antiquity.

(*Amended E.R. 6 of 2019*)

Monuments

2A. Declaration of proposed monuments etc. and plans thereof

- (1) For the purpose of considering whether or not any place, building, site or structure should be declared to be a monument the Authority may, after consultation with the Board, by notice in the Gazette declare it to be a proposed monument, proposed historical building, or proposed archaeological or palaeontological site or structure.
- (2) A declaration under subsection (1) may include as part of a proposed monument any land adjoining the place, building, site or structure required for fencing, covering or protecting the proposed monument or for providing or facilitating access thereto.
- (3) A notice under subsection (1) shall include a reference to the appropriate plan deposited under subsection (4).
- (4) The Authority shall, upon publication of a declaration under subsection (1)—
 - (a) sign and deposit in the Land Registry a plan clearly showing the situation of the proposed monument; and
(Amended 8 of 1993 s. 2; 20 of 2002 s. 5)
 - (b) if the declaration relates to a proposed monument within private land—
 - (i) register the declaration in the Land Registry;
(Amended 8 of 1993 s. 2)
 - (ii) serve on the owner and any lawful occupier of the private land a copy of the notice of declaration, together with a copy of the plan; and
 - (iii) fix to the private land a copy of the notice of declaration and a copy of the plan.
- (5) The Authority shall—

- (a) keep available at his office, for public inspection at all reasonable times, a copy of every plan deposited under subsection (4); and
- (b) at the request of the owner or a lawful occupier of a proposed monument which is shown on a plan so deposited, deliver a copy of the plan free of charge to the owner or occupier.

(Added 38 of 1982 s. 3)

2B. Duration of declaration of proposed monument

- (1) Subject to subsection (2), a declaration made under section 2A shall have effect for a period of 12 months from the making of it unless earlier withdrawn by the Authority.
- (2) Except in the case of a declaration relating to a proposed monument within private land, the Authority may from time to time, after consultation with the Board and with the approval of the Chief Executive, extend the period referred to in subsection (1) by 12 months: *(Amended 59 of 2000 s. 3)*

Provided that no single extension shall exceed 12 months.

(Added 38 of 1982 s. 3)

2C. Objection to declaration of proposed monument within private land

- (1) The owner or any lawful occupier of private land within which a proposed monument has been declared may at any time apply to the Authority for withdrawal of the declaration.
- (2) Within one month of receipt of the application the Authority shall—
 - (a) withdraw the declaration; or
 - (b) refuse the application,

and shall forthwith notify the owner or occupier of his decision.

- (3) Within one month of being notified of the Authority's decision the owner or occupier may by petition to the Chief Executive object to the declaration.
- (4) The Chief Executive, upon considering an objection made under subsection (3), may direct that—
 - (a) the declaration be withdrawn; or
 - (b) the objection be referred to the Chief Executive in Council.
- (5) The Chief Executive in Council, upon considering an objection referred to him under subsection (4), may direct that—
 - (a) the declaration shall stand;
 - (b) the declaration shall stand, subject to such variations or conditions as he thinks fit; or
 - (c) the declaration be withdrawn.
- (6) A direction of the Chief Executive under subsection (4) or of the Chief Executive in Council under subsection (5) shall be final.

(Added 38 of 1982 s. 3. Amended 59 of 2000 s. 3)

3. Declaration of monuments and plans thereof

- (1) Subject to section 4, the Authority may, after consultation with the Board and with the approval of the Chief Executive, by notice in the Gazette, declare any place, building, site or structure, which the Authority considers to be of public interest by reason of its historical, archaeological or palaeontological significance, to be a monument, historical building or archaeological or palaeontological site or structure. *(Amended 38 of 1982 s. 4. 59 of 2000 s. 3)*

- (2) A declaration under subsection (1) may include as part of a monument any land adjoining the place, building, site or structure required for fencing, covering or protecting the monument or for providing or facilitating access thereto.
- (3) A notice under subsection (1) shall include a reference to the appropriate plan deposited under subsection (4).
- (4) The Authority shall, before publication of a declaration under subsection (1)—
 - (a) sign and deposit in the Land Registry a plan clearly showing the situation of the place, building, site or structure intended by the Authority to be declared to be a monument; and (*Amended 38 of 1982 s. 4; 20 of 2002 s. 5*)
 - (b) if the declaration relates to a monument within private land, register the declaration in the Land Registry. (*Amended 8 of 1993 s. 2*)
- (5) The Authority shall—
 - (a) keep available at his office, for public inspection at all reasonable times, a copy of every plan deposited under subsection (4); and
 - (b) at the request of the owner or a lawful occupier of a monument which is shown on a plan so deposited, deliver a copy of the plan free of charge to the owner or occupier.

4. Objection to declaration of monument within private land

- (1) If a place, building, site or structure intended by the Authority to be declared a monument is within private land, then, prior to the making of the declaration, the provisions of this section shall have effect.

- (2) The Authority shall serve on the owner and any lawful occupier of the private land a notice in writing of his intention to declare a monument therein, together with a plan clearly showing the situation of the intended monument.
- (2A) The Authority shall fix to the private land a copy of the notice and plan served under subsection (2). (*Added 38 of 1982 s. 5*)
- (3) Within 1 month, or such longer period as may be allowed by the Chief Executive in any particular case, after the service of a notice under subsection (2), the owner or a lawful occupier may object by petition to the Chief Executive to the intended declaration.
- (4) The Chief Executive, upon considering an objection made under subsection (3), may direct that—
 - (a) the intended declaration shall not be made; or
 - (b) the objection be referred to the Chief Executive in Council.
- (5) The Chief Executive in Council, upon considering an objection referred to him under subsection (4), may direct that—
 - (a) the intended declaration be made by the Authority in accordance with section 3;
 - (b) the intended declaration be so made, subject to such variations or conditions as he thinks fit; or
 - (c) the intended declaration shall not be made.
- (6) A direction of the Chief Executive under subsection (4)(a) or of the Chief Executive in Council under subsection (5) shall be final.

(Amended 38 of 1982 s. 5; 59 of 2000 s. 3)

5. Control of monuments generally

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- (1) Subject to this section, the Authority, and any designated person authorized by him in writing, may, for the purposes of this Ordinance, at all reasonable times—
- (a) enter and inspect any proposed monument or monument;
 - (b) with the prior approval of the Chief Executive— (*Amended 59 of 2000 s. 3*)
 - (i) fence, repair, maintain, preserve or restore any proposed monument or monument;
 - (ii) excavate or search for relics in any proposed monument or monument and remove any relics hitherto undiscovered. (*Amended 38 of 1982 s. 6*)
- (2) Neither the Authority nor a designated person authorized by him may enter any residential premises, in the exercise of the powers conferred by subsection (1), unless—
- (a) he first obtains the consent in writing of the lawful occupier of such premises; or
 - (b) he has given to the lawful occupier thereof not less than 48 hours' notice in writing of his intention to enter. (*Amended E.R. 6 of 2019*)
- (3) Nothing in this section shall authorize—
- (a) the exclusion from any part of a proposed monument or monument of—
 - (i) the owner or lawful occupier of the proposed monument or monument;
 - (ii) a person beneficially interested in the proposed monument or monument; or
 - (iii) a person authorized by such owner, occupier or person beneficially interested in the proposed monument or monument; or

- (b) the excavation of a proposed monument or monument or the search for relics in residential premises, without the consent of the owner and the lawful occupier of the residential premises. (*Amended 38 of 1982 s. 6*)

6. Acts prohibited in relation to certain monuments except under permit

- (1) Subject to subsection (4), no person shall—
 - (a) excavate, carry on building or other works, plant or fell trees or deposit earth or refuse on or in a proposed monument or monument; or
 - (b) demolish, remove, obstruct, deface or interfere with a proposed monument or monument,except in accordance with a permit granted by the Authority. (*Amended 38 of 1982 s. 7*)
- (2) A person aggrieved by the refusal of the Authority to grant him a permit may, within 14 days after the date of such refusal, appeal by way of petition to the Chief Executive who may confirm, vary or reverse the refusal.
- (3) The decision of the Chief Executive on the appeal shall be final.
- (4) The Authority may, after consultation with the Board and with the approval of the Chief Executive, by notice in the Gazette, declare any proposed monument or monument to be exempt from this section. (*Amended 38 of 1982 s. 7*)

(*Amended 59 of 2000 s. 3*)

7. Grant of sums for preservation, etc., of monuments

The Authority may, with the prior approval of the Chief Executive, grant to a person who proposes to carry out work for the maintenance, preservation or restoration of a monument such sum

as the Authority thinks fit for the purpose of assisting the person to carry out the work.

(Amended 59 of 2000 s. 3)

8. Compensation

- (1) Subject to this section, the Authority may, with the prior approval of the Chief Executive, pay to the owner or lawful occupier of a proposed monument or monument compensation in respect of financial loss suffered or likely to be suffered by him by reason of— *(Amended 59 of 2000 s. 3)*
 - (a) the exercise by the Authority, or by a designated person authorized by him, of the powers specified in section 5(1); or
 - (b) a refusal to grant a permit or any conditions imposed in a permit.
- (2) The compensation shall be such amount as may be—
 - (a) agreed between the Authority and the owner or lawful occupier of the proposed monument or monument; or
 - (b) assessed by the District Court under section 9.
- (3) No compensation shall be awarded under this section in respect of financial loss which has been or may be suffered in connexion with a contract made or anything done by the owner or lawful occupier of the proposed monument or monument after the service of a notice under section 2A(4) or section 4(2).

(Amended 38 of 1982 s. 8)

9. Assessment of compensation by District Court

- (1) In default of agreement under section 8(2)(a), the owner or lawful occupier may apply to the District Court to assess the amount of compensation payable under section 8.

- (2) The District Court may, on such application, award to the applicant such compensation as it thinks reasonable in the circumstances.

Relics

10. Certain relics to be property of Government

- (1) Subject to this Ordinance, the ownership of every relic discovered in Hong Kong after the commencement* of this Ordinance shall vest in the Government from the moment of discovery.
- (2) The Authority may, on behalf of the Government, disclaim the ownership of a relic so discovered, and upon such disclaimer— (*Amended E.R. 6 of 2019*)
- (a) the ownership of the Government in the relic shall be extinguished; and
 - (b) the ownership of the relic shall vest in the person, who, but for the enactment of this Ordinance, would otherwise have been the owner thereof.

Editorial Note:

* Commencement date: 1 January 1976.

Discovery and Excavation of Antiquities

11. Discovery of antiquities

- (1) Any person who discovers, or knows of the discovery of an antiquity or supposed antiquity shall forthwith report the discovery to the Authority or to a designated person.
- (2) A person who makes a report under subsection (1), shall, if so requested by the Authority or a designated person, identify

to the Authority or to the designated person the antiquity or supposed antiquity in respect of which the report was made.

- (3) A person who discovers an antiquity or supposed antiquity shall take all reasonable measures to protect it.
- (4) The Authority may, with the prior approval of the Chief Executive, award to a person who makes a report under subsection (1) such sum by way of reward as the Authority thinks fit. (*Amended 59 of 2000 s. 3*)
- (5) A designated person to whom a report is made under this section shall forthwith inform the Authority in writing of the report.
- (6) Subject to subsection (7), the Authority, and any designated person authorized by him in writing, may enter upon and inspect the site of the discovery of an antiquity or supposed antiquity.
- (7) Neither the Authority nor a designated person authorized by him may enter any residential premises, in the exercise of the powers conferred by subsection (6), unless—
 - (a) he first obtains the consent in writing of the lawful occupier of such premises; or
 - (b) he has given to the lawful occupier thereof not less than 48 hours' notice in writing of his intention to enter.

12. No excavation, etc., of antiquities, without licence

No person, other than the Authority and a designated person authorized by him, shall—

- (a) excavate or search for antiquities except in accordance with a licence granted to him;
- (aa) use a metal detector at any proposed monument or monument except in accordance with a licence granted

to him to excavate and search for antiquities; (*Added 38 of 1982 s. 9*)

- (b) remove any relic hitherto undiscovered from a proposed monument or monument, or collect or remove any object which he supposes to be a relic from the site of its discovery, otherwise than for the purposes of protecting the same or in accordance with a licence granted to him. (*Amended 38 of 1982 s. 9*)

13. Grant of licences

- (1) Subject to this Ordinance, the Authority may grant to any person a licence to excavate and search for antiquities.
- (2) A licence may not be granted to a person unless the Authority is satisfied that he—
 - (a) has had sufficient scientific training or experience to enable him to carry out the excavation and search satisfactorily;
 - (b) has at his disposal sufficient staff and financial or other resources to enable him to carry out the excavation and search satisfactorily; and
 - (c) is able to conduct, or arrange for, a proper scientific study of any antiquities discovered as a result of the excavation and search. (*Amended 38 of 1982 s. 10*)
- (3) Subject to subsection (2), a licence may be granted or renewed for a period not exceeding 12 months.
- (4) A licence shall be in the prescribed form and shall specify the area of land in respect of which it is granted.
- (5) A licence shall not be transferable.
- (6) The Authority may include such conditions in a licence as he considers appropriate, and in particular but without prejudice to the generality hereof, may include conditions as to the

conduct of any excavation and search, the reporting, mapping and documenting thereof, the use of a metal detector, the preservation of materials discovered, their removal, examination and return, and the making and delivery of casts, rubbings, squeezes and other reproductions. (*Amended 38 of 1982 s. 10; E.R. 6 of 2019*)

14. Rights of licensee

- (1) The holder of a licence may, subject to the conditions thereof, enter upon and excavate and search for antiquities, in, on or under—
 - (a) any Government land within the area specified in the licence; and (*Amended 29 of 1998 s. 105*)
 - (b) subject to subsection (2), any private land within the area specified in the licence.
- (2) The holder of a licence shall not be entitled to enter upon, or excavate or search for antiquities in, on or under private land unless he first obtains the consent in writing of the owner and any lawful occupier of the land.

15. Cancellation of licence

- (1) Subject to subsection (2), the Authority may cancel any licence.
- (2) A licence shall not be cancelled unless the holder of the licence has been given reasonable opportunity to make representations to the Authority as to why his licence should not be cancelled.
- (3) As soon as possible after the cancellation of a licence, the Authority shall, by notice in writing, served either personally or by registered post, inform the person whose licence has been cancelled of the cancellation and of the reasons therefor.

- (4) Failure to comply with subsection (3) shall not invalidate the cancellation of a licence.

16. Appeal against refusal of licence

- (1) A person aggrieved by the refusal of the Authority to grant him a licence, or to renew his licence, or by the cancellation of his licence, may within 14 days after the date of such refusal or cancellation appeal by way of petition to the Chief Executive who may confirm, vary or reverse the refusal or cancellation.
- (2) The decision of the Chief Executive on the appeal shall be final.

(Amended 59 of 2000 s. 3)

Antiquities Advisory Board

17. Establishment and meetings of Antiquities Advisory Board

- (1) There is hereby established an Antiquities Advisory Board consisting of such members as the Chief Executive may appoint, one of whom shall be appointed by the Chief Executive to be Chairman. *(Replaced 29 of 1986 s. 2. Amended 59 of 2000 s. 3)*
- (2) The Board shall meet at such times and places as the Chairman may direct.
- (3) At any meeting of the Board the Chairman or, in his absence, a member elected by the members present at that meeting to act as Chairman shall preside. *(Replaced 29 of 1986 s. 2)*
- (4) Not less than one-half of the number of members of the Board shall constitute a quorum at a meeting of the Board. *(Amended 29 of 1986 s. 2)*
- (5) The procedure at a meeting of the Board shall be such as the Board may determine.

18. Board may advise Authority

The Board may advise the Authority on any matters relating to antiquities, proposed monuments or monuments or referred to it for consultation under section 2A(1), section 3(1) or section 6(4).

(Amended 38 of 1982 s. 12)

Miscellaneous**19. Offences**

(1) Any person who—

- (a) knowingly makes a false statement to the Authority or to a designated person as to the situation or circumstances of the discovery of an antiquity;
- (b) contravenes section 11(1), or section 12; *(Amended 38 of 1982 s. 13)*
- (c) without reasonable excuse, fails to comply with a request made to him by the Authority or a designated person under section 11(2); or
- (d) wilfully obstructs the Authority, or any designated person authorized by him, in the exercise of his powers under section 5(1) or section 11(6),

shall be guilty of an offence and shall be liable on conviction to a fine at level 2 and imprisonment for 6 months.

- (2) Any person who contravenes section 6(1) shall be guilty of an offence and shall be liable on conviction to a fine at level 6 and imprisonment for 1 year. *(Added 38 of 1982 s. 13)*

(Amended E.R. 6 of 2019)

20. Evidence

- (1) Subject to this section, in any civil or criminal proceedings

if it is proved that a relic or alleged relic was in Hong Kong after the date of commencement* of this Ordinance, it shall be presumed, until the contrary is proved, that the discovery of the relic or alleged relic occurred after that date.

- (2) A presumption arising under subsection (1) shall be rebutted if the court is satisfied that the relic or alleged relic—
 - (a) has been in the possession of a party to the proceedings, or of such a party and any identifiable person from whom he acquired possession, for a period of not less than 6 years prior to the commencement of the proceedings; or
 - (b) has at any time before the commencement of the proceedings been imported into Hong Kong.
- (3) In any civil or criminal proceedings a certificate, purporting to be signed by the Authority and stating that anything is an antiquity, shall be admissible in evidence and shall be prima facie evidence of the facts stated therein.

Editorial Note:

* Commencement date: 1 January 1976.

20A. Service by post

Any document or notice to be served or given under this Ordinance may be served or given by registered post.

(Added 38 of 1982 s. 14)

21. Payments to be made from funds provided by the Legislative Council

A sum—

- (a) granted under section 7;
- (b) awarded as compensation under section 8 or 9;

(c) awarded under section 11(4),
shall be paid from such money as may be provided from time to time by the Legislative Council.

22. Regulations

- (1) The Chief Executive in Council may make regulations— (*Amended 59 of 2000 s. 3*)
- (a) prescribing the forms of licences and permits;
 - (b) prescribing the manner in which applications for licences and permits shall be made;
 - (c) prescribing the fees (if any) to be paid to the Authority upon the grant or renewal of licences;
 - (d) regulating the conduct of excavations and searches for antiquities;
 - (e) providing for the management and control of antiquities, proposed monuments and monuments; (*Amended 38 of 1982 s. 15*)
 - (f) providing for the prohibition and control of access to excavations, proposed monuments, monuments and sites, and for the payment, restriction and regulation of entrance fees thereto; and (*Amended 38 of 1982 s. 15*)
 - (g) generally for the better carrying out of the provisions of this Ordinance.
- (2) No regulations made under this Ordinance shall—
- (a) prohibit or restrict the access to a proposed monument or monument of the owner or lawful occupier of the proposed monument or monument or of any person beneficially interested therein, or of any person authorized by the owner, occupier or such person; or (*Amended 38 of 1982 s. 15*)

- (b) confer upon a person any right which he would not otherwise have had to enter upon private land.